

		of others” according to the jury in <i>Roby</i>. Further, given that Plaintiff alleges that he was terminated for requesting a medical accommodation and for perceived filing of workers’ compensation, a jury could reasonably infer that Defendant terminated Plaintiff in retaliation for Plaintiff’s exercising his rights—i.e., conduct for which a jury found was oppressive under <i>Wysinger</i>. As such, Plaintiff has sufficiently pled “the ultimate facts showing an entitlement to [punitive damages.]” (<i>Clauson, supra</i>, 67 Cal. App. 4th at p. 1255.) The motion is therefore DENIED. Moving Defendant to give notice.
10	Lampley v. Hermosa 2019 LP	The court has been made aware that Plaintiff is now deceased. A deceased individual has no legal existence. (See <i>Tanner v. Best’s Estate</i> (1940) 40 Cal.App.2d 442, 444-445 [holding that judgment could not be entered against the “estate” of a decedent, as the “estate” “is neither a natural nor artificial person [but rather] merely a name to indicate the sum total of the assets and liabilities of a decedent”]; see also Code Civ. Proc., §§ 377.40 <i>et seq.</i> [governing claims against decedents]. Therefore, proceedings are suspended indefinitely pending appointment of a personal representative of decedent/plaintiff per CCP 385. In the case of a self-represented plaintiff, if no personal representative is appointed, the case cannot proceed until such a representative is substituted. The court must suspend all further proceedings until the executors or administrators are qualified and substituted as parties (Matter of Estate of Page, 50 Cal. 40 (1875))[4]. If the deceased plaintiff’s estate has a personal representative, that representative can continue the action on behalf of the estate (Adams v. Superior Court, 196 Cal.App.4th 71 (2011))[5]. Status conference shall occur on December 11, 2025, at 9:00 a.m. in this department. The moving party to give notice.
11	Mass v. CTG Auto, LLC	Off calendar.
12	Oh v. Giving Tree Lending	Plaintiff April Oh moves for order compelling Defendant Giving Tree Lending to comply with this court’s October 24, 2024 order and awarding monetary sanctions against Defendant and its attorneys. For the following reasons, the motion is GRANTED. The court may impose monetary sanctions on any party engaging in the misuse of the discovery process, including the reasonable costs and fees incurred as a result of the failure to obey (including fees on the sanctions motion). (See Code Civ. Proc., § 2023.030(a).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010(g); <i>Van Sickle v. Gilbert</i> (2011) 196 Cal.App.4th 1495, 1516.) Once a party is ordered by the court to